

**SUBSTITUTE FOR
HOUSE BILL NO. 5107**

A bill to amend 2018 IL 1, entitled
"Michigan Regulation and Taxation of Marihuana Act,"
by amending sections 5 and 15 (MCL 333.27955 and 333.27965).

THE PEOPLE OF THE STATE OF MICHIGAN ENACT:

1 Sec. 5. **(1)** ~~1.~~Notwithstanding any other law or provision of
2 this act, and except as otherwise provided in section 4, ~~of this~~
3 ~~act,~~ the following acts by a person **who is** 21 years of age or older
4 are not unlawful, are not an offense, are not grounds for seizing
5 or forfeiting property, are not grounds for arrest, prosecution, or
6 penalty in any manner, are not grounds for search or inspection,
7 and are not grounds to deny any other right or privilege:

8 (a) ~~except as permitted by~~ **Subject to** subdivision (b),
9 possessing, using or consuming, internally possessing, purchasing,



1 transporting, or processing 2.5 ounces or less of marihuana, except
 2 that not more than 15 grams of **the** marihuana may be in the form of
 3 marihuana concentrate. ~~+~~

4 (b) ~~within~~ **All of the following within** the person's residence:
 5 ~~, possessing,~~

6 (i) **Possessing**, storing, and processing not more than 10 ounces
 7 of marihuana, ~~and any except that not more than 200 grams of the~~
 8 **marihuana may be in the form of marihuana concentrate.**

9 (ii) **Possessing, storing, and processing not more than 2.5**
 10 **kilograms of** marihuana produced by marihuana plants cultivated on
 11 the premises, **except that not more than 200 grams of the marihuana**
 12 **may be in the form of marihuana concentrate.** ~~and cultivating~~

13 (iii) **Cultivating** not more than 12 marihuana plants for personal
 14 use, provided that ~~no~~ **not** more than 12 marihuana plants are
 15 possessed, cultivated, or processed on the premises at ~~once,~~ **the**
 16 **same time.**

17 (c) ~~assisting~~ **Assisting** another person who is 21 years of age
 18 or older in any of the acts described in this section. ~~+~~ ~~and~~

19 (d) ~~giving~~ **Giving** away or otherwise transferring without
 20 remuneration up to 2.5 ounces of marihuana, except that not more
 21 than 15 grams of marihuana may be in the form of marihuana
 22 concentrate, to a person **who is** 21 years of age or older, as long
 23 as the transfer is not advertised or promoted to the public.

24 (2) ~~2.~~ Notwithstanding any other law or provision of this act,
 25 except as otherwise provided in section 4, ~~of this act,~~ the use,
 26 manufacture, possession, and purchase of marihuana accessories by a
 27 person **who is** 21 years of age or older and the distribution or sale
 28 of marihuana accessories to a person **who is** 21 years of age or
 29 older is authorized, is not unlawful, is not an offense, is not



1 grounds for seizing or forfeiting property, is not grounds for
 2 arrest, prosecution, or penalty in any manner, and is not grounds
 3 to deny any other right or privilege.

4 **(3) 3.** ~~A person shall~~**must** not be denied custody of or
 5 visitation with a minor for conduct that is permitted by this act,
 6 unless the person's behavior ~~is such that it~~ creates an
 7 unreasonable danger to the minor that can be clearly articulated
 8 and substantiated.

9 Sec. 15. A person who commits any of the following acts, and
 10 **who** is not otherwise authorized by this act to ~~conduct such~~
 11 ~~activities,~~**commit the acts,** may be punished only as provided in
 12 this section and is not subject to any other form of punishment or
 13 disqualification, unless the person consents to another disposition
 14 authorized by law:

15 **(a) 1.** ~~Except for a person who engaged in conduct described in~~
 16 ~~sections~~**section** 4(1)(a), 4(1)(b), 4(1)(c), 4(1)(d), 4(1)(g), or
 17 ~~4(1)(h),~~**(b), (c), (d), (g), or (h),** a person who possesses not
 18 more than the amount of marihuana allowed by section 5, cultivates
 19 not more than the amount of marihuana allowed by section 5,
 20 delivers without receiving any remuneration to a person who is ~~at~~
 21 ~~least~~ 21 years of age **or older** not more than the amount of
 22 marihuana allowed by section 5, or possesses with intent to deliver
 23 not more than the amount of marihuana allowed by section 5, is
 24 responsible for a civil infraction and may be punished by a fine of
 25 not more than ~~\$100~~**\$100.00** and forfeiture of the marihuana.

26 **(b) 2.** ~~Except for a person who engaged in conduct described in~~
 27 section 4, a person who possesses not more than ~~twice~~**2 times** the
 28 amount of marihuana allowed by section 5, cultivates not more than
 29 ~~twice~~**2 times** the amount of marihuana allowed by section 5,



1 delivers without receiving any remuneration to a person who is ~~at~~
 2 ~~least~~ 21 years of age **or older** not more than ~~twice~~ **2 times** the
 3 amount of marihuana allowed by section 5, or possesses with intent
 4 to deliver not more than ~~twice~~ **2 times** the amount of marihuana
 5 allowed by section 5, **may be punished as follows:**

6 (i) ~~(a) for~~ **For** a first violation, **the person** is responsible
 7 for a civil infraction and may be punished by a fine of not more
 8 than ~~\$500~~ **\$500.00** and forfeiture of the marihuana. ~~+~~

9 (ii) ~~(b) for~~ **For** a second violation, **the person** is responsible
 10 for a civil infraction and may be punished by a fine of not more
 11 than ~~\$1,000~~ **\$1,000.00** and forfeiture of the marihuana. ~~+~~

12 (iii) ~~(c) for~~ **For** a third or subsequent violation, **the person** is
 13 guilty of a misdemeanor and may be punished by a fine of not more
 14 than ~~\$2,000~~ **\$2,000.00** and forfeiture of the marihuana.

15 (c) ~~3.~~ Except for a person who engaged in conduct described ~~by~~
 16 **in** section 4(1)(a), ~~4(1)(d), or 4(1)(g), (d), or (g),~~ a person
 17 ~~under~~ **younger than** 21 years of age who possesses not more than 2.5
 18 ounces of marihuana or ~~who~~ cultivates not more than 12 marihuana
 19 plants **may be punished as follows:**

20 (i) ~~(a) for~~ **For** a first violation, **the person** is responsible
 21 for a civil infraction and may be punished as follows:

22 (A) ~~(1) if~~ **If** the person is ~~less~~ **younger** than 18 years of age,
 23 by a fine of not more than ~~\$100~~ **\$100.00** or community service,
 24 forfeiture of the marihuana, and completion of 4 hours of drug
 25 education or counseling. ~~+-~~

26 (B) ~~(2) if~~ **If** the person is ~~at least~~ 18 years of age **or older**,
 27 by a fine of not more than ~~\$100~~ **\$100.00** and forfeiture of the
 28 marihuana.

29 (ii) ~~(b) for~~ **For** a second violation, **the person** is responsible



for a civil infraction and may be punished as follows:

(A) ~~(1) if~~ **If** the person is ~~less~~ **younger** than 18 years of age, by a fine of not more than ~~\$500~~ **\$500.00** or community service, forfeiture of the marihuana, and completion of 8 hours of drug education or counseling. ~~or~~

(B) ~~(2) if~~ **If** the person is ~~at least~~ 18 years of age **or older**, by a fine of not more than ~~\$500~~ **\$500.00** and forfeiture of the marihuana.

(d) ~~4.~~ Except for a person who engaged in conduct described in section 4, a person who possesses ~~more than twice~~ **2 times or more** of the amount of marihuana allowed by section 5 **but less than 17.5 kilograms of marihuana or less than 1.75 kilograms of marihuana concentrate**, cultivates ~~more than twice~~ **2 times or more** of the amount of marihuana allowed by section 5 **but fewer than 35 marihuana plants**, or delivers without receiving any remuneration to a person who is ~~at least~~ 21 years of age ~~more than twice~~ **or older 2 times or more** of the amount of marihuana allowed by section 5, ~~shall be responsible for~~ **is guilty of** a misdemeanor, ~~but shall not be subject to imprisonment unless the violation was habitual, willful, and for a commercial purpose or the violation involved violence.~~ **punishable by 1 or both of the following:**

(i) Imprisonment for not more than 93 days if either of the following conditions is met:

(A) The person was convicted of a violation of this subdivision, subdivision (e), or section 7401 of the public health code, 1978 PA 368, MCL 333.7401, during the 7-year period immediately preceding the date of the violation.

(B) The person has been convicted of 2 or more violations of any combination of this subdivision, subdivision (e), or section



1 7401 of the public health code, 1978 PA 368, MCL 333.7401.

2 (ii) A fine of not more than \$10,000.00.

3 (e) Except for a person who engaged in conduct described in
4 section 4, a person who possesses 17.5 kilograms or more but 25
5 kilograms or less of marihuana, possesses 1.75 kilograms or more
6 but 2.5 kilograms or less of marihuana concentrate, or cultivates
7 35 or more but 50 or fewer marihuana plants is guilty of a
8 misdemeanor punishable by 1 or both of the following:

9 (i) Imprisonment for not more than 180 days if either of the
10 following conditions is met:

11 (A) The person was convicted of a violation of this
12 subdivision, subdivision (d), or section 7401 of the public health
13 code, 1978 PA 368, MCL 333.7401, during the 7-year period
14 immediately preceding the date of the violation.

15 (B) The person has been convicted of 2 or more violations of
16 any combination of this subdivision, subdivision (d), or section
17 7401 of the public health code, 1978 PA 368, MCL 333.7401.

18 (ii) A fine of not more than \$20,000.00.

19 Enacting section 1. This amendatory act does not take effect
20 unless House Bill No. 5105 of the 103rd Legislature is enacted into
21 law.